

26STCV16693 26STCV16693

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-06-25

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Case Number: 26STCV16693 Hearing Date: June 25, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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RED OAK CAPITAL FUND VI, LLC,

Plaintiff(s),

vs.

MCKINNEY

CAPITAL HERMOSA PARTNERS LLC,

Defendant(s).

Case No.:

26STCV16693

Hearing Date:

June 25, 2026

[TENTATIVE] ORDER: OSC

RE WHY A RECEIVER SHOULD NOT BE APPOINTED

Plaintiff Red Oak Capital Fund VI, LLC ("Plaintiff") and Defendant McKinney Capital Hermosa Partners, LLC ("Defendant") seek Court approval of a stipulation to appoint a receiver for Defendant. The Court set the instant OSC after denying Plaintiff's ex parte application for substantially the same relief. The Court identified several concerns with the proposed stipulation and directed the parties to provide supplemental briefing addressing those issues. (See Min. Order, June 4, 2026.)

The Court has reviewed Plaintiff's supplemental briefing and the revised stipulated proposed order attached as Exhibit A to the Declaration of David Root filed on June 12, 2026. (Defendant opted to not file any briefing; Plaintiff's counsel attests that Defendant's counsel agrees to the revised stipulated proposed order.) The revisions materially address the concerns identified in the Court's June 4, 2026 minute order and appropriately limit the proposed receiver's authority.

The Court is therefore prepared to approve and sign the revised stipulated proposed order. Within 5 calendar days, Plaintiff shall file a clean, fully executed copy of the revised stipulated proposed order (i.e., the version attached as Exhibit A to the Root Declaration) for the Court's review and signature.

The Court sets a Status Conference re Receivership for September 22, 2026 at 9:30 a.m. in this Department. Plaintiff or the receiver (when appointed) shall file a status report three court days before the status conference.

Plaintiff is ordered to give notice.

Date: June 24, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.